

against him; was above the power of all judges, justices, &c. For [that] would . . . put it in the power of a common justice to exercise any authority over him, and stop the whole machine of government.”¹⁸

In their view the impeachment process was the exclusive form of process available against the President. Senator Maclay ardently opposed this view and put the case of a President committing “murder in the street.” In his view, in such a case neither impeachment nor resurrection were the exclusive means of holding the President to the law; rather, there was “loyal justice.” Senator Maclay, who recorded the exchange, concludes his notes with the remark that none of this “is worth minuting, but it shows clearly how amazingly fond of the old leaven many people are.”¹⁹ In his view, Senator Ellsworth and his supporters had not fully comprehended the difference in the political position of the American President and that of the British Monarch. Again, nothing more can be concluded from this than that the proper scope of Presidential accountability, including the question whether the President should be subject to judicial process, was no clearer then than it is now.

The final item cited by petitioner clearly supports his position, but is of such late date that it contributes little to understanding the original intent. In his *Commentaries on the Constitution*, published in 1833, Justice Story described the “incidental powers” of the President:

“Among these must necessarily be included the power to perform [his functions] without any obstruction or impediment whatsoever. The President cannot, therefore, be liable to arrest, imprisonment, or detention, while he is in the discharge of the duties of his office; and for this purpose his person must be deemed, in civil cases

¹⁸ W. Maclay, *Sketches of Debate in the First Senate of the United States in 1789-1791*, p. 152 (1969 reprint).

¹⁹ *Ibid.*